

		Not quite. The third cause of action for failure to prevent harassment focuses on Esmailian’s conduct. (Complaint, ¶ 62 [“62. At all times relevant to this action, Defendant ESMAILIAN severely and pervasively engaged in unwelcome overtures, racial epithets and unwanted verbal comments based on race with Plaintiff.”].) The remaining causes of action assert discrimination or retaliation for Plaintiff’s alleged reporting of Esmailian’s conduct. (See, e.g., Complaint.) More importantly, however, the Court’s order compelling Esmailian to arbitrate was based on principles of agency and equitable estoppel. Esmailian has not established that Plaintiff’s agency allegations are false as a matter of law. Esmailian does not provide a sufficient basis to set aside the Court’s October 8, 2025, order. Plaintiff to give notice.
14	Colligan vs. So-Cal Boys Restaurant Group Inc.	OFF CALENDAR
15	Mohagen vs. BMW of North America, LLC	TENTATIVE RULING: For the reasons set forth below, Defendant BMW of North America, LLC’s (“BMW” or “Defendant”) motion for summary judgment/adjudication is GRANTED. Preliminarily, both Plaintiff’s opposition and BMW’s reply were untimely. The Court exercises its discretion to consider the untimely opposition and reply. <u>Statement of Law</u> “Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc.